



THE CITY OF NEW YORK
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December 23, 2013

BY ECF

Honorable Sterling Johnson
United States District Judge
Eastern District of New York
225 Cadman Plaza East
Brooklyn, New York 11201

Re: Wayne Holiday, et al v. City of New York, et al.,
13-CV-735 (SJ)(SMG)

Your Honor:

I am an Assistant Corporation Counsel in the Special Federal Litigation Division of the New York City Law Department and the attorney representing defendants in the above-referenced matter. Enclosed please find a duly executed Stipulation and Order of Dismissal for Your Honor's endorsement and filing.

Thank you for your consideration herein.

Respectfully submitted,

/s/

Patrick Beath
Assistant Corporation Counsel

Enc.

cc: Nick Mindicino, Esq. (By ECF)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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WAYNE HOLIDAY AND ESTHER HOLIDAY,

Plaintiffs,

**STIPULATION AND
ORDER OF DISMISSAL**

-against-

13-CV-735 (SJ) (SMG)

THE CITY OF NEW YORK, POLICE DETECTIVE
TIMOTHY ERWIG SHIELD #2533, POLICE DETECTIVE
ORLEN ZAMBRANO, SHIELD #24202, POLICE
DETECTIVE MICHAEL PARKS, SHIELD #1790, POLICE
DETECTIVE WANDA CHALAR, SHIELD #1952, POLICE
DETECTIVE ERICK HIRSCH, SHIELD #3907, POLICE
DETECTIVE TODD CRACCO, SHIELD #2359, POLICE
UNDERCOVER OFFICER C0032, POLICE UNDERCOVER
OFFICER C0092, POLICE SERGEANT EDWARD
FACKLER ,

Defendants.
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WHEREAS, the parties have reached a settlement agreement and now desire to resolve the remaining issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice; and

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2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

STOLL, GLICKMAN & BELLINA, LLP
Attorneys for Plaintiff
475 Atlantic Avenue
Brooklyn, New York 11217

By: 
Nicholas Mindicino
Attorney for Plaintiff

MICHAEL A. CARDOZO
Corporation Counsel of the
City of New York
*Attorney for Defendants City, Erwig and
Zambrano*
100 Church Street, Rm. 3-208
New York, New York 10007

By: 
Patrick Beath
Assistant Corporation Counsel

SO ORDERED:

Dated: New York, New York

December 23, 2013

HON. STERLING JOHNSON
UNITED STATES DISTRICT JUDGE

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